

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1122

By: Bashore

AS INTRODUCED

An Act relating to amusements and sports; amending 3A O.S. 2021, Sections 602, 604.2, 606, and 624, which relate to the Oklahoma State Athletic Commission Act; modifying terms; directing the Oklahoma State Athletic Commission to assume jurisdiction over certain licensing; directing Commission to halt certain events; directing Commission to seek penalties in certain circumstances; prohibiting promotion or participation in certain events; removing certain exceptions that relate to testing for the human immunodeficiency virus, the hepatitis B virus, or the hepatitis C virus before the issuing of a license; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 3A O.S. 2021, Section 602, is amended to read as follows:

Section 602. A. As used in the Oklahoma State Athletic Commission Act:

1. "Administrator" means the administrator of the Oklahoma State Athletic Commission;

1 2. "Amateur combative sports event" means a combative sports
2 event in which the participants have never been licensed as
3 professionals in any combative sport;

4 3. "Amateur combative sports practitioner" means a person who
5 has never received or competed for any purse or other article either
6 for the expenses of training therefor or for participating in any
7 combative sports contest or exhibition which exceeds in monies or
8 other things of value a sum to be determined by the Oklahoma State
9 Athletic Commission;

10 4. "Amateur mixed martial artist" means a person eighteen (18)
11 years of age or older who has never received or competed for any
12 purse or other article either for the expenses of training therefor
13 or for participating in any combative sport contest or professional
14 exhibition which exceeds in monies or other things of value a sum to
15 be determined by the Oklahoma State Athletic Commission;

16 5. "Amateur mixed martial arts" means any form of competitive
17 pugilistic contest in which the participants have never been
18 licensed as professionals in any combative sport and blows are
19 delivered with any part of the hands, feet, or knees and multiple
20 combative disciplines are used including grappling. Such contests
21 take place in a rope-enclosed ring or fenced enclosed cage and are
22 fought in timed rounds;

23 6. "Applicant" means any person, individual, club, association,
24 corporation, partnership or trust which submits to the Oklahoma

1 State Athletic Commission an application for a license or permit
2 pursuant to the Oklahoma State Athletic Commission Act;

3 7. "Booking agent" means independent contractors who act as
4 bookers, agents, agencies and representatives who secure engagements
5 and contracts for combative sports participants;

6 8. "Boxing" means any form of competitive pugilism or unarmed
7 combat in which a blow is usually struck which may reasonably be
8 expected to inflict injury, including, but not limited to, boxing,
9 wrestling, mixed martial arts, and kickboxing, but shall not include
10 the martial arts as defined by the provisions of this section;

11 9. "Broadcast" means any audio or visual transmission sent by
12 any means of signal within this state, whether live or taped or time
13 delayed, and includes any replays thereof. "Broadcast" shall not
14 include any audio or visual transmission sent by any means of signal
15 of any professional boxing event conducted outside this state;

16 10. "Cable system operator" means any person who makes
17 available or provides customers a closed-circuit telecast which is
18 pay-per-view, including any person who does so as a direct broadcast
19 satellite provider or other multichannel video service provider;

20 11. "Closed-circuit telecast of professional combative sporting
21 events" means telecast rights, including television, cable
22 television, or pay-per-view telecasts, acquired by paying a
23 licensing fee or by paying a contractual price by a business or
24 individual, including, but not limited to, arenas, entertainment or

1 meeting centers, restaurants, bars, taverns, hotels, motels, clubs,
2 and organizations, which offers the viewing of the event to the
3 public or to private residences. Such events shall include local
4 and state professional combative sports contests and professional
5 exhibitions as defined in this section. "Closed-circuit telecast"
6 means any such telecast of a professional combative sporting event
7 as described herein which is not intended to be available for
8 viewing without the payment of a fee, collected for or based upon
9 each event viewed, for the privilege of viewing the telecast, and
10 includes pay-per-view;

11 12. "Club" means an incorporated or unincorporated association
12 or body of individuals voluntarily united and acting together for
13 some common or special purpose;

14 13. "Combative sports" means any form of competitive pugilism
15 or unarmed combat in which a blow is usually struck which may
16 reasonably be expected to inflict injury, including but not limited
17 to boxing, wrestling, mixed martial arts, and kickboxing, but shall
18 not include the martial arts (singular) as defined by the provisions
19 of this section;

20 14. "Combative sports practitioner" means a person who competes
21 or spars in a combative sports event ~~and includes~~, including, but
22 not limited to, boxers, kickboxers, mixed martial artists and
23 wrestlers;

24 15. "Commission" means the Oklahoma State Athletic Commission;

1 16. "Contest" means a combative sports event in which it is
2 reasonable to anticipate that the participants strive earnestly in
3 good faith to win;

4 17. "Corner person" means, but shall not be limited to, a
5 trainer, a second, or any other individual who attends the
6 participant during a match;

7 18. "Event" means a combative sports contest or exhibition
8 including but not limited to a match, bout, contest, show or
9 tournament;

10 19. "Exhibition" means a combative sports event in which the
11 participants show or display their skill by sparring without
12 necessarily striving to win;

13 20. "Judge" means an individual other than a referee who shall
14 have a vote in determining the winner of any contest;

15 21. "Kickboxing" means any form of competitive pugilistic
16 professional or amateur contest or exhibition in which blows are
17 delivered with the hand and any part of the foot. Such contests or
18 exhibitions take place in a rope-enclosed ring and are fought in
19 timed rounds;

20 22. "License" means a certificate issued by the Commission to
21 participants of sanctioned professional or amateur combative sports
22 contests, ~~professional or exhibitions, and amateur mixed martial~~
23 ~~arts contests~~ and is a mandatory requirement for participation in
24 such events;

1 23. "Manager" means an individual who controls or administers
2 the affairs of any professional combative sports participant,
3 including acting as a booking agent. "Manager" shall include the
4 representative of a manager as defined by the Commission;

5 24. "Martial arts" means any form of karate, kung fu, tae kwon-
6 do, or any other form of martial or self-defense art;

7 25. "Matchmaker" means an individual who brings together
8 professional combative sports participants or arranges professional
9 combative sports contests or professional exhibitions;

10 26. "Participant" means an individual who takes part in a
11 combative sports event;

12 27. "Pay-per-view telecasts of professional combative sports
13 events" means telecasts offered by cable television companies to
14 subscribers at a cost in addition to the monthly cable television
15 subscription rate. Such events shall include local and state
16 professional combative sports contests and professional exhibitions
17 as defined in this section;

18 28. "Person" means any individual, firm, partnership, joint
19 venture, limited liability company, club, association, corporation,
20 trust, or other entity any other group or combination acting in
21 concert, assignee, agent, employee, director, officer, or any other
22 representative of such person;

1 29. "Physician" means an individual licensed under the laws of
2 this state to engage in the general practice of medicine or
3 osteopathic medicine;

4 30. "Professional combative sports practitioner" means an
5 individual eighteen (18) years of age or older who competes for
6 money, prizes, or purses, or who teaches, instructs, or assists in
7 the practice of combative sports or sparring as a means of obtaining
8 pecuniary gain;

9 31. "Professional combative sports event" means a combative
10 sports event in which the participants are paid a purse;

11 32. "Professional mixed martial arts" means any form of
12 competitive pugilistic contest in which the participants are paid a
13 purse and blows are delivered with any part of the hands, feet,
14 elbows, or knees and multiple combative disciplines are used to
15 include grappling. Such contests take place in a rope-enclosed ring
16 or fenced enclosed cage and are fought in timed rounds;

17 33. "Promote" or "promoting" means producing, staging,
18 sponsoring, organizing or otherwise holding a combative sports event
19 whether or not the event is open to the public;

20 34. "Promoter" means any person or individual, whether a
21 resident or nonresident of Oklahoma, or club or corporation, whether
22 domesticated or not domesticated in Oklahoma, that produces or
23 stages professional contests, amateur mixed martial arts contests,
24 or professional exhibitions conducted within this state and shall

1 include any officer, director, or employees as defined by the
2 Commission;

3 35. "Pugilism" means combative sports or the skill or practice
4 of fighting with the fists;

5 36. "Purse" means the financial guarantee or any other
6 remuneration or thing of value for which a combative sports
7 practitioner participates in a professional combative sports event
8 and shall include the participant's share of any payment received
9 for radio broadcasting, television, including cable television, pay-
10 per-view television, and closed-circuit television, and motion
11 picture rights. "Purse" shall also include gate receipts and any
12 other prizes;

13 37. "Ring official" means any individual who performs an
14 official function during the progress of a combative sports event or
15 amateur mixed martial arts event including but not limited to
16 timekeepers, judges, referees, and attending physicians;

17 38. "Sanctioning permit" means a permit issued by the
18 Commission to promoters who make application for official approval
19 of a professional or amateur combative sports ~~events and amateur~~
20 ~~mixed martial arts events~~ event;

21 39. "Sparring" means to engage in a form of combative sport
22 with jabbing or feinting movements, and the exchange of few heavy
23 blows, such as occurs in a practice or exhibition boxing match;

24

1 40. "Telecast promoter" means any promoter who shows or causes
2 to be shown in this state a closed-circuit telecast of any
3 professional combative sports event conducted in this state.

4 "Telecast promoter" shall not include a cable system operator;

5 41. "Trainer" means an individual who assists, coaches, or
6 instructs any professional combative sports practitioner or amateur
7 mixed martial artist with respect to physical conditioning,
8 strategy, techniques, or preparation for competition, professional
9 combative sports contests, or professional exhibitions; and

10 42. "Vendor" means any individual, firm, organization, club, or
11 corporation that participates in the conduct of a professional
12 combative sports event or amateur mixed martial arts event conducted
13 in this state by offering for sale food or merchandise, including,
14 but not limited to, wearing apparel, alcoholic and nonalcoholic
15 beverages, souvenirs, and programs.

16 B. The Commission may define any term which is not defined in
17 the Oklahoma State Athletic Commission Act.

18 SECTION 2. AMENDATORY 3A O.S. 2021, Section 604.2, is
19 amended to read as follows:

20 Section 604.2. A. The mission of the Oklahoma State Athletic
21 Commission shall be to preserve and protect the health, safety and
22 welfare of combative sports event participants and the general
23 public through the effective regulation of combative sports in the
24 State of Oklahoma, while fostering an environment that expands

1 existing combative sports events and brings new events into the
2 state.

3 B. The Commission shall have the power and duty to:

4 1. Promulgate rules and issue orders necessary to carry out the
5 purposes of the Oklahoma State Athletic Commission Act, and enforce
6 the provisions of said act and the rules promulgated pursuant
7 thereto;

8 2. Assume jurisdiction over all matters relating to the
9 licensing of amateur and professional combative sports
10 practitioners, ~~amateur~~ including, but not limited to, mixed martial
11 artists, ~~amateur~~ kickboxers, professional boxers, corner persons,
12 booking agents, matchmakers, promoters, referees, judges,
13 timekeepers, vendors, physicians, announcers, clubs, and
14 corporations associated with ~~a~~ an amateur or professional combative
15 sports event, ~~amateur~~ including, but not limited to, a kickboxing
16 event ~~or amateur,~~ mixed martial arts event, or professional boxing
17 event related thereto;

18 3. Act to halt the unlicensed promotion of professional
19 combative sports events and seek administrative, criminal, and civil
20 penalties against those engaged in booking, matchmaking, and
21 promoting of unsanctioned events;

22 4. Set license and permit fees pursuant to the requirements of
23 the Oklahoma State Athletic Commission Act;

1 ~~4.~~ 5. Conduct investigations into the qualifications of
2 applicants for licensure and registration;

3 ~~5.~~ 6. Conduct investigations and proceedings for alleged
4 violations of the Oklahoma State Athletic Commission Act and order
5 or subpoena the attendance of witnesses, the inspection of records
6 and premises, and the production of relevant books and papers
7 necessary to such investigations and proceedings;

8 ~~6.~~ 7. Develop and administer examinations for applicants for
9 licenses and permits; and

10 ~~7.~~ 8. Make such expenditures as may be necessary in the
11 performance of its duties.

12 C. Any rule promulgated, order made, or action taken prior to
13 July 1, 1999, by the Commissioner of Labor or the Department of
14 Labor pursuant to the provisions of, or rules issued pursuant to,
15 the Oklahoma State Athletic Commission Act shall be considered valid
16 and in effect unless amended, repealed, or rescinded by the
17 Commission.

18 D. Any valid license, permit, certificate, or registration
19 issued prior to July 1, 1999, by the Commissioner of Labor pursuant
20 to the Oklahoma State Athletic Commission Act, or rules promulgated
21 pursuant thereto, shall remain valid and in effect until it expires
22 pursuant to law or unless suspended or revoked by the Commission.
23 Any application for a license, permit, certificate, or registration
24

1 which is pending on June 30, 1999, is hereby transferred to the
2 Commission.

3 E. All personnel, powers, duties, responsibilities, fund
4 balances, encumbrances, obligations, and property, which shall
5 include records, furniture, and equipment of the Department of Labor
6 relating to the regulation of combative sports, are hereby
7 transferred to the Oklahoma State Athletic Commission.

8 SECTION 3. AMENDATORY 3A O.S. 2021, Section 606, is
9 amended to read as follows:

10 Section 606. A. The Oklahoma State Athletic Commission is
11 hereby vested with jurisdiction to issue sanctioning permits for all
12 professional and amateur combative sports contests and exhibitions,
13 ~~for all amateur including, but not limited to,~~ mixed martial arts
14 ~~contests and exhibitions and all amateur kickboxing contests and~~
15 ~~exhibitions,~~ professional boxing, and kickboxing held or given
16 within this state and to issue licenses for participants of
17 sanctioned contests and exhibitions.

18 B. 1. ~~No person shall~~ It shall be unlawful to promote, ~~nor~~
19 ~~shall any person or~~ participate in, a professional or amateur
20 combative sports event ~~or an amateur mixed martial arts event or an~~
21 ~~amateur kickboxing event~~ unless the event is sanctioned by the
22 Commission.

23 2. Except as provided in paragraphs 1 and 2 of subsection C of
24 this section, ~~no person shall~~ it shall be unlawful to promote an

1 amateur combative sports event unless the event ~~has been~~ is
2 sanctioned by the Commission.

3 3. Any person violating the provisions of this subsection shall
4 be ~~punishable pursuant to the~~ subject to the administrative and
5 criminal penalty provisions of Section 615 of this title.

6 C. Specifically exempt from the provisions of the Oklahoma
7 State Athletic Commission Act are the amateur combative sports
8 contests or exhibitions conducted or sponsored by:

9 1. Any school, college, or university where the participants
10 are students regularly enrolled in such institutions and the
11 instructors, coaches, and trainers are employees of such
12 institutions. The term "school, college, or university" shall not
13 include a school or other institution whose principal purpose is to
14 furnish instruction in combative sports or sparring;

15 2. Any military installation or branch of the Armed Forces
16 where the participants are employed by the military installation or
17 are members of the branch of the Armed Forces sponsoring the contest
18 or exhibition;

19 3. USA Boxing; and

20 4. The International Olympic Committee.

21 D. The following persons are specifically exempt from the
22 provisions of the Oklahoma State Athletic Commission Act:

23 1. Practitioners and instructors of the martial arts as defined
24 in Section 602 of this title; and

1 2. Instructors of amateur combative sports practitioners if
2 such instructors are not required to be licensed pursuant to other
3 provisions of the Oklahoma State Athletic Commission Act.

4 SECTION 4. AMENDATORY 3A O.S. 2021, Section 624, is
5 amended to read as follows:

6 Section 624. A. Except as otherwise provided in this section,
7 prior to being issued a license pursuant to this act every
8 participant applicant shall submit a certified copy of results from
9 testing performed by a laboratory certified pursuant to 42 C.F.R.
10 Part 493 verifying that the applicant is not infected with the human
11 immunodeficiency virus (HIV), the hepatitis B virus or the hepatitis
12 C virus. ~~The testing shall be performed no more than~~ Testing shall
13 be conducted within three hundred sixty-five (365) days ~~before the~~
14 ~~application is submitted. A statement from a doctor of osteopathy~~
15 ~~or medical doctor indicating that the applicant has successfully~~
16 ~~completed a full course of vaccinations for hepatitis B may be~~
17 ~~submitted in lieu of the results of testing for hepatitis B~~ before
18 the combative sports contest or exhibition the participant is
19 participating in. Except as otherwise provided in this section, an
20 applicant who receives positive results from any of the tests
21 required by this section shall be denied a license for the
22 particular contest.

23 B. If a participant must be replaced within twenty-four (24)
24 hours of an event, a promoter may replace the participant that has

1 been pulled with a new participant that has complied with the
2 testing requirements found in subsection A of this section.

3 ~~C. Notwithstanding the requirement for testing stated in~~
4 ~~subsection A of this section, the participant and opponent, ring~~
5 ~~official, and ringside physician may agree, in writing, to waive the~~
6 ~~denial of licensure for failure to timely submit the required~~
7 ~~certified test results, and by such signed written agreement, the~~
8 ~~participant and opponent shall be granted a license to participate~~
9 ~~in their particular contest.~~

10 SECTION 5. This act shall become effective November 1, 2025.

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